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TABLE OF CONTENTS

	<i>Page</i>
TABLE OF AUTHORITIES	iii
STATEMENT OF THE CASE	1
A. Background	1
B. The Drug "Problem"	2
C. Drugs In The Sports Program	6
D. The Drug-Testing Program	8
E. Effect Of Drug Testing	10
F. The Drug Test Applied To James	12
G. The Proceedings Below	12
SUMMARY OF ARGUMENT	16
ARGUMENT	17
THE DISTRICT'S DRUG-TESTING PRO- GRAM VIOLATES THE FOURTH AMEND- AMENDMENT	17
A. The Fourth Amendment Applies To School Searches	17
B. Drug Testing Is A "Search"	19
C. Standards For Drug Tests	19
D. The District's Drug-Testing Program Is Unreasonable	25
1. The District's Program Is A Substan- tial Invasion Of Privacy	26

	<i>Page</i>
2. The District's Interest In Drug Testing Is Not Compelling	39
3. The Students' Interest In Privacy Out- weighs The District's Interest In Test- ing	49
CONCLUSION	50

TABLE OF AUTHORITIES

	<i>Page</i>
Cases	
<i>Brooks v. East Chambers Consol. Independent School District</i> , 730 F.Supp. 759 (S.D.Tex. 1989), <i>aff'd without published op.</i> , 930 F.2d 915 (5th Cir. 1991)	44
<i>Chambers v. Maroney</i> , 399 U.S. 42 (1970)	19
<i>Delaware v. Prouse</i> , 440 U.S. 648 (1979)	13, 47
<i>Doe v. Renfrow</i> , 451 U.S. 1022 (1981)	18
<i>Dunaway v. New York</i> , 442 U.S. 200 (1979)	19
<i>Frank v. Maryland</i> , 359 U.S. 360 (1959)	20
<i>Goss v. Lopez</i> , 419 U.S. 565 (1975)	18
<i>Marshall v. Barlow's, Inc.</i> , 436 U.S. 307 (1978)	20
<i>Michigan Dep't of State Police v. Sitz</i> , 496 U.S. 444 (1990)	47
<i>National Treasury Employees Union v. Von Raab</i> , 489 U.S. 656 (1989)	<i>passim</i>
<i>New Jersey v. T.L.O.</i> , 469 U.S. 325 (1969)	16, 17, 18, 32, 33

	<i>Page</i>
<i>Olmstead v. United States</i> , 277 U.S. 438 (1928)	18
<i>Schaill v. Tippecanoe County School Corp.</i> , 679 F.Supp. 833 (N.D.Ind. 1988)	29, 30
<i>Skinner v. Railway Labor Executives' Ass'n</i> , 489 U.S. 602 (1989)	<i>passim</i>
<i>Stanford v. Texas</i> , 379 U.S. 476 (1965)	20
<i>State ex rel. Juvenile Dep 't v. DuBois</i> , 821 P.2d 1124 (Or.App. 1991)	32
<i>State v. Tourtillott</i> , 618 P.2d 423 (Or. 1980), <i>cert. denied</i> , 451 U.S. 972 (1981)	13
<i>Sterling v. Cupp</i> , 44 607 P.2d 206 (Or.App. 1980), <i>aff'd as modified</i> , 625 P.2d 123 (Or. 1981)	27
<i>Terry v. Ohio</i> , 392 U.S. 1 (1968)	19, 27
<i>Tinker v. Des Moines Indep. Community School Dist.</i> , 393 U.S. 503 (1969)	17
<i>United States v. Chadwick</i> , 433 U.S. 1 (1977)	20
<i>United States v. Martinez-Fuerte</i> , 428 U.S. 543 (1975)	20, 38, 39, 47

	<i>Page</i>
<i>University of Colorado v. Derdyn</i> , 863 P.2d 929 (Colo. 1993), <i>cert. denied</i> , __ U.S. __ (1994)	35
<i>West Virginia State Board of Education v. Barnette</i> , 319 U.S. 624 (1943)	17, 18

Constitutional Provisions and Statutes

United States Constitution, Amend. IV	<i>passim</i>
Oregon Constitution, Article I, §9	12, 13, 15, 32
Article II, §2(1)(a)	19
20 U.S.C. §123h(b)(3)	28
20 U.S.C. §3192(d)	8
Or. Rev. Stat. §10.030(2)(c)	19

Other Authorities

Eric Blair a.k.a. George Orwell, <i>1984</i> (New American Library 1981)	30
K. Zeese, DRUG TESTING LEGAL MANUAL (rel. #2, Nov. 1994)	27

STATEMENT OF THE CASE

James Acton is a student in the Vernonia School District ("the District") in northwest Oregon. He doesn't use illicit drugs, and the District has no reason to suspect he does. And yet it will not let James participate in school sports unless he consents to produce urine on demand to be tested for evidence of illicit drug use. The issue is whether this drug-testing requirement violates James's rights under the state and federal constitutions to be free from unreasonable searches.

A. Background

The District operates four schools, including Washington Grade School, in Vernonia, Oregon, a small, logging community in the Coast Range an hour west of Portland. (R. 18; Pl. Ex. 5 at 6). About 700 students attend these schools, and most of them participate in at least one of the seven interscholastic sports the District offers for grades seven and up: football, basketball, cross country, track, volleyball, wrestling, and golf. (Pl. Ex. 5 at 7; J.A. 20, 37). In the late 1980s, the school board concluded that it had a drug "problem" within the student body generally and the sports program particularly. The board's first reaction was to try to persuade students through lectures and assemblies that drugs can be harmful. (J.A. 25-26). But, impatient for immediate results, it soon switched from persuasion to coercion. First, it brought in a drug-sniffing dog -- but only for one day -- to search student lockers. (R. 25, 34-35). Then, in the fall of 1989, it adopted a mandatory drug-testing program for any student who wishes to participate in school sports. The purpose of the program is to protect the "health and safety" of athletes, according to the District's "policy statement," as well as the officials who designed the program and enforce it. (J.A. 7, 27-28, 61; Pl. Ex. 5 at 16).

B. The Drug "Problem"

It is important to carefully describe Vernonia's drug "problem," because the District persistently overstates it. For example, in its petition for a writ of *certiorari*, the District told this Court that an "epidemic" of drug use within the student body "invaded" the sports program, "endangering the very center of activity of the school and the community," and leaving the school board with no alternative to drug testing but "mass expulsion" of students. Pet. at 3, 7 and 10-11. The District tones down the rhetoric in its brief on the merits, but nevertheless tries to paint the same picture. E.g., Pet. Br. at 28 (referring to a "crisis in the classroom and the sports program"). In fact, there is little evidence of Vernonia students using drugs, and no evidence of any athlete in Vernonia ever competing while on drugs, let alone causing or sustaining injury.

The evidence consists almost entirely of complaints by a few teachers and administrators about a perceived decline in student deportment in the mid- to late-1980s. Students generally seemed to be less well-mannered than anyone remembered. Some of them refused to pay attention in class, said rude, obscene, and disrespectful things, laughed aloud at serious moments, and generally acted like juveniles -- at least, it appeared to some teachers that more students were behaving this way than ever before. (J.A. 21-22, 39-40, 47-48, 60-61, 66-67). School officials were particularly disturbed by a group of students who called themselves "the Big Elks." It is unclear how many students were at the "core" of this group -- one teacher said four to six (R. 81), which is less than one percent of the student body; another said ten. (J.A. 60). In any event, the Big Elks went around campus "bugling" and "butting" their heads together in an adolescent attempt to demonstrate their "camaraderie." (J.A. 41). Another group -- likewise of uncertain size -- called itself the "Drug Cartel" and exhibited equally strange be-

havior. (J.A. 48). There is no evidence, however, that any "Elk" or "Cartellian" ever actually used drugs or that drugs were the reason why they behaved as they did. (J.A. 52).

The perceived decline in student behavior coincided with an increase in the number of students referred by teachers to administrators for discipline -- known locally as "disciplinary referrals." (R. 44, 69). For want of some other explanation for the downturn in student deportment, the teachers concluded that drug use was on the rise within the student body, contrary to national and statewide trends. (J.A. 77). This assumption was supported, at least in the teachers' minds, by unconfirmed, second-hand reports of off-campus drug use, almost all of it hearsay or hearsay within hearsay,¹ received over the Actons' continuing objections,² and by reports of students romanticizing drugs in

¹ For example, Randy Aultman, a principal, testified: "Four football players talked to the football coach and admitted that they have used drugs, and amphetamines were those drugs, and the coach told me[.] [T]he kids never came forward and said, you know, they did" (J.A. 23). In other words, four students told the football coach that they had used amphetamines. The coach told Mr. Aultman what he had heard, and he repeated it at trial as if it were fact. Later, Mr. Aultman admitted that he had never actually seen or caught a student taking drugs and that he was acting on second-hand reports. (J.A. 36).

Ron Svenson, a coach and teacher, testified: "When I was an assistant coach the head football coach was called in and I believe it was in the football season of '85 and apprised of the fact that parents called and said that some of their sons -- that other kids on the team had done drugs on a road trip" (J.A. 53). In other words, the football coach told Mr. Svenson that some parents told the football coach that some students told the parents that some other students had taken drugs during a road trip.

² As the District notes, Pet. Br. at 4, n.3, the trial court granted the Actons a continuing objection, on hearsay grounds, to these second- and third-hand reports of students using drugs. (J.A. 22-23; R. 107, 109-10).

(continued...)

papers and hallway conversations.³ But only one of the teachers who testified at trial reported that she ever actually observed any student taking drugs.⁴

The District's assumption that every unruly student is unruly because of drugs is, on its face, dubious and, on the record, unsubstantiated. As noted above, there is evidence that more students were misbehaving than before, but no evidence that any, let alone many or most, of those students were acting up because of drugs. Likewise, there is evidence that disciplinary referrals were up, but no evidence

² (...continued)

The court said it would not receive this evidence for the purpose of proving that students actually were using drugs, because that would be hearsay, but would receive it for the limited purpose of explaining why school officials acted as they did. (J.A. 23; R. 116-17, 143-44). Accordingly, this evidence cannot support a finding that there was in fact a drug problem in the school district, merely that school officials *thought* there was. The District's brief repeatedly ignores this limitation on the use of its evidence. *E.g.*, Pet. Br. at 6.

³ A teacher who taught composition to 90 or so students each year for 13 years testified that 8 or 9 of them -- which works out to less than one percent of all of her students -- had written papers that romanticized drugs. (J.A. 46, 48, 51). There is no evidence that any of those students, or others who were overheard in the hallway bragging about drug use, actually took drugs, or that this was anything but juvenile bravado.

⁴ Marsha King testified that she looked out of a window of the high school and observed students at a cafe across the street passing cigarettes back and forth. (J.A. 39; R. 80). She concluded that the cigarettes were "joints," that is, contained marijuana, but did not explain how she could tell, from that distance, that they did not instead contain tobacco. Nor did she explain how many students she saw, when she saw them, or whether any of them were athletes. On another occasion, Ms. King saw a student who was obviously intoxicated, but on alcohol, not drugs. (J.A. 40; R. 81). This was as close as Ms. King or any other witness came to direct observation of any illicit drug use.

that any of those referrals involved drugs. Students who misbehaved in class were "referred" whether or not drugs were suspected as the reason for their misbehavior. (R. 83). Therefore, the District is not justified in contending, based on referral numbers alone, that the downturn in student delinquency was completely, or even partly, drug-driven.⁵

The Actons do not contend that Vernonia has managed, through geographic isolation, to escape drug infiltration entirely, or that no students in Vernonia were using drugs before the District adopted its drug-testing program. Nor do they contend that even so much as one student on drugs would not be a "problem" and reason for concern. Their point is simply that it is misleading for the District to assert that drug use in Vernonia schools had reached "epidemic" proportions, or anything like it, and that "administrators and teachers foresaw the need for mass expulsions." Pet. Br. at 29.⁶ On this record, the most that can be said is that "some" students appeared to be taking drugs, which is exactly what the court of appeals concluded when it reviewed the evidence. In a finding not challenged by the District, the court of appeals said: "[W]e reemphasize that what the evidence shows, *and all it shows*, is that there was *some* drug usage in the schools" 23 F.3d at 1519 (Pet. App. 20a)(emphasis added). This is as far as the court of appeals

⁵ From the early to late 1980s, disciplinary referrals went from 40 or 50 per year to double that. (J.A. 21). But, of course, one student could have multiple referrals, so the absolute number of referrals is not very helpful in determining the number of misbehaving students.

⁶ One witness testified that "massive expulsion" or "some tremendous alternative," meaning, apparently, drug testing, were the only two solutions to the school's disciplinary problems. (J.A. 26-27). But this is clearly hyperbole. There is no evidence that any student was expelled for using drugs or that the school board even considered expelling a student for that reason, let alone masses of them.

went in its findings, and as far as the record allowed it to go.⁷

C. Drugs In The Sports Program

If there is little evidence of drug use in the classroom, there is even less of it in the sports program. Indeed, the District conceded, in a pre-trial interrogatory, *that it is unable to confirm so much as one drug-related injury in the entire history of its sports program.* (J.A. 79-80). This includes, of course, the period of time when, the District now says, drug use was rampant in its schools.⁸ As discussed

⁷ The District argues that the trial court's findings were endorsed by the court of appeals and thus are entitled to "great weight" in this Court. Pet. Br. at 29, n.23. It is true that this Court will defer to the lower courts when they concur in their findings, but that is *not* what happened here. The court of appeals did not simply adopt the trial court's findings as its own. To the contrary, it reviewed the record and made its own observations about the extent of the drug problem in Vernonia. See 23 F.3d at 1512 (Pet. App. 2a-4a). Moreover, although the court rejected the Actons' contention that there was no evidence of *actual* drug use, merely *perceived* drug use, *id.* at 1519 (Pet. App. 18a-19a), it immediately went on to "reemphasize" that all the record shows is "*some* drug usage in the schools." *Id.* (Pet. App. 20a-21a). The court appeared to studiously avoid words like "epidemic" and "crisis," which punctuate the briefs of the District and the *amici* supporting it. Indeed, the court noted that even the word "problem" may misdescribe the situation: "Perhaps dubbing [the District's drug experience] a 'problem' is a matter of perception or definition. What appears to be a problem in one place might seem to be a minor annoyance elsewhere." 23 F.3d at 1519 (Pet. App. 20a).

⁸ The District suspects that one athlete may have been injured while competing on drugs, but the evidence in support of that suspicion is skimpy at best. The wrestling coach, Ron Svenson, testified that a high school student was injured in an "away" match when he failed to react as quickly as the coach would have liked to a hold his opponent put on him. (J.A. 54-55). *A day later* Mr. Svenson went to the hotel room the
(continued...)

above, the District concluded that drug use was commonplace in the classroom because of discipline problems there. There is no evidence, however, of similar problems on the playing field. It follows that, if students were taking drugs, they were not taking them before competing.

Perhaps the most telling evidence on the extent of drugs in the sports program before the drug test is the evidence that only two students, both in high school, have flunked the test. (Pl. Ex. 5 at 13-15, 25; J.A. 38; R. 64). There are several possible explanations for this near-perfect record. One is that, as the District now contends, many athletes were taking drugs before the drug test was enacted, but they all quit immediately and en masse as soon as testing started. This seems unlikely, however, if drugs were as embedded in the school culture, and are as addictive, as the District suggests. Another explanation is that, again, many athletes were taking drugs, but they all chose to give up sports and

⁸ (...continued)

wrestler was sharing with *three* other students. While there he smelled what he believed to be marijuana and concluded that "somebody in the room was smoking." *Id.* Of course, that "somebody" was not necessarily the injured wrestler, and even if it were, it does not follow that he had also smoked marijuana before competing the day before or, if he did, that marijuana played any role in his injury. Mr. Svenson was the first to admit that this evidence leads nowhere. "There was no way," he said, "of particularly proving at that point in time whether he was under the influence [during the match]." (J.A. 56).

Mr. Svenson, who also coached football, testified that he watched some football game films and noticed that some of the students did not react to situations the way he taught them. This led him to wonder if they were under the influence of drugs during the games. (J.A. 56). He never found out.

This was as far as the District got in trying to prove that any student ever competed in a District-sponsored athletic event while under the influence of illegal drugs.

avoid the test rather than give up drugs. There is no evidence, however, that participation in school sports dropped off when the testing began and, indeed, 110 students were tested in just the first three weeks of the program. (Pl. Ex. 3 at 1; Pl. Ex. 5 at 19). A more plausible explanation for so few failed tests is that, in fact, few athletes were taking drugs before testing started.

The District superintendent admitted that the District does not know what percentage of students who play sports take drugs illegally and that no effort has been made to find out except through the drug test. (Pl. Ex. 5 at 15). Since the test has detected next to no one, the District is hard pressed now to argue that drugs "invaded" the sports program; to the contrary, they appeared to have largely stayed out of it.

D. The Drug-Testing Program

In response to its concern, justified or not, about drug use in school sports, the school board decided to institute a mandatory drug-testing program for all student athletes. In its present form,⁹ the program prohibits students from par-

⁹ The original program was in force from September 1989 to August 1990 (J.A. 7), and applied to any student who participates in any extra-curricular activity, athletic or nonathletic, including, for example, band, drama, and student government. (Pl. Ex 5 at 16-17; J.A. 29-30). The District claims that it amended the program to apply only to athletes in order "to assure its legality." Pet. Br. 9. In fact, it may have been motivated by funding concerns. As the Solicitor General explains in his brief, the District has received \$7,500 per year under a 1986 congressional act that authorized federal grants to local schools for, among other things, "non-discriminatory random drug testing programs for students voluntarily participating in *athletic* activities." Br. of United States at 1-2 and n.1, quoting 20 U.S.C. §3192(d)(emphasis added). If the District had stuck with its original program, it would not have been "legal" to (continued...)

ticipating in school sports unless they consent to have their urine tested for traces of certain illicit drugs: cocaine, marijuana, amphetamines and, occasionally, LSD. (J.A. 8; Pl. Ex. 4 at 4-5; Pl. Ex. 5 at 18). Notably absent from this list is perhaps the most commonly abused drug, at all age levels, namely, alcohol. Pet. Br. at 9. Also excluded are steroids and other substances designed to enhance athletic performance. (J.A. 86).

Athletes are tested at the start of each athletic season in which they participate. (Pl. Ex. 5 at 221-22). They are also subject to random tests, conducted weekly during the season. *Id.* The testing protocol depends on gender. Boys are taken to the locker room where, one at a time, they urinate into a vial while a male faculty member, either Mr. Aultman, the grade school principal, or Mr. Svenson, a teacher and coach in the high school, waits close behind. (Pl. Ex. 4 at 3). Mr. Aultman testified that sometimes he watches the student produce the urine sample, but often he just listens. (J.A. 31-32). Mr. Svenson denied watching or listening, but both he and Mr. Aultman admitted that that is why they are there: to observe the students so they don't cheat. (J.A. 32; R. 138-39). The students, of course, don't know whether or when the monitor is watching them. The procedure for girls is slightly different. They produce their samples, one at a time, in an enclosed stall while a female teacher stands outside listening through a vent in the door for the normal sounds of urination. (J.A. 42; R. 78-79; Ex. 4 at 4; Ex. 5 at 21-22).

Any student who refuses to be tested is automatically

⁹ (...continued)
receive these funds.

In October, 1994, Congress reauthorized the 1986 act, minus the provision for federal funding of drug tests. Br. of United States at 2, n.1.

suspended from the sports program for the remainder of the athletic season. (J.A. 8). A student who flunks the test -- that is, a student whose urine sample tests "positive" for the target drugs -- is subject to specified and escalating penalties. For a first "offense," the student is given a choice between "[p]articipating in an assistance program and taking weekly drug tests for six weeks" or "be[ing] suspended from participating in athletics for the remainder of the current season and the next season for which he/she is eligible." (J.A. 9). For a second "offense," the first option is removed; the student is suspended for the remainder of the current season and all of the next season. *Id.* A third "offense" results in suspension through the next two seasons. *Id.*

In addition to submitting their urine for inspection, students who have been taking prescription drugs "must provide verification (either by a copy of the prescription or by doctor's authorization) prior to being tested." (J.A. 8).¹⁰ This information is then shared with the lab that tests the urine to aid in interpreting the test results. (Stip. Test. of R. Velander at 3).

The District superintendent, principals, vice principals, and athletic directors have direct access to the test results. (J.A. 29). Also, other officials who are involved in the ensuing due process hearing, counseling programs, and weekly repeat drug tests will necessarily find out when a student tests positive.

E. Effect Of Drug Testing

The District asserts that the drug-testing policy accomplished its goal of discouraging athletes from competing while on drugs. But since there is no evidence that any stu-

¹⁰ The form the District uses also requires the students to identify their nonprescription medications and the names of their treating physicians. (Def. Ex. 109 at 1, C).

dents were doing that, and since there were as many drug-related injuries before the policy took effect as after -- to wit, none -- it is impossible to conclude that the policy accomplished anything except to invade student privacy.

It is true that some teachers noted an improvement in classroom behavior after the policy was adopted, but that wasn't the goal of the policy -- at least not the stated goal. And since there is no basis for finding that all of the previously unruly students were unruly because of drugs, there is likewise no basis for concluding that the policy had anything to do with the turnaround in their behavior.

Even if classroom discipline was entirely drug-driven, and even if the improvement in discipline was due solely to a decline in drug use -- big ifs on this record -- it still cannot be asserted, without guesswork, that the decline in drug use was due to drug testing, rather than to the District's other, ongoing drug education and counseling programs, which the superintendent called "effective." (R. 63-64; Pl. Ex. 5 at 20). The drug-testing program is "only a small part" of the District's anti-drug campaign, according to the program's author. (Pl. Ex. 3 at 1). That being so, the District is not justified in now claiming that drug-testing was solely responsible for whatever improvement there may have been in the drug "problem."

The District's own expert, Dr. Robert DuPont, testified that drug use among high school students has declined steadily, both across the state and across the nation, since the mid-1980s, which includes the period of time when the District's drug-testing policy was in force. (J.A. 77). Whatever caused this trend -- Dr. DuPont attributes it to decreasing societal tolerance of drugs and widespread publicity over the death of Len Bias from an overdose of cocaine (*id.*) -- may also account for the trend in Vernonia, if in fact there was one there.

As the District notes, one teacher thought that student grades improved post-testing, Pet. Br. at 12, but the District offered no evidence, such as summaries of transcripts or test results, to support that observation.

F. The Drug Test Applied To James

In the fall of 1991, James was 12 years old and a seventh grader in Washington Grade School. He was interested in sports and tried out for the football team. (J.A. 16; R. 6-7). On the first day of practice, the coach gave him a drug-testing consent form, which he took home and discussed with his parents. They -- James and his parents -- decided not to sign. (J.A. 16-17; R. 7-8). For that reason alone, the District kicked James off the team and declared him ineligible for school sports until he consents to drug testing. (R. 8-9, 12-13).

James's father, Wayne, testified that he believes the drug test is an invasion of James's privacy and a violation of his civil rights. (R. 9). He also expressed concern that drug-testing sends the wrong message to students: a message that, in the government's eyes, everyone is presumed guilty -- in James's case, guilty of using illicit drugs -- until proven innocent. (R. 9-10). There is no question, however, that James is innocent. As the court of appeals found, "[n]o evidence suggest[s] that James has ever used drugs or that the District has any reason to suspect that he has." 23 F.3d at 1517 (Pet. App. 9a).

G. The Proceedings Below

James's parents, on his behalf, brought this action to enjoin the District from enforcing its drug-testing program against him. In their complaint, they alleged that the program violates his rights under the Fourth Amendment and Article I, section 9, of the Oregon Constitution, both of which prohibit "unreasonable" government searches. (J.A.

3-6). Following a bench trial, the district court found no violation of either constitution and entered judgment for the District. *Acton v. Vernonia School Dist.* 47J, 796 F.Supp. 1354 (D.Or. 1992)(Pet. App. B). The Actons appealed, and the court of appeals unanimously reversed. *Acton v. Vernonia School Dist.* 47J, 23 F.3d 1514 (9th Cir. 1994) (Pet. App. A).

At the outset of its opinion the court of appeals announced that it was "constrained, in the first instance, to decide this case on Oregon constitutional grounds," 23 F.3d at 1518 (Pet. App. 16a), "in order to avoid addressing federal constitutional claims unnecessarily." *Id.* (Pet. App. 12a-13a). This was possible, the court said, because Article I, section 9, and the Fourth Amendment are not "coextensive" and, moreover, the state provision is more protective than the federal provision: "We can say with absolute confidence that the Oregon Constitution will not be construed to offer less protection than the Fourth Amendment. [And] [i]t is highly likely that it will be found to offer more protection." *Id.* (Pet. App. 16a).

A leading Oregon case on suspicionless searches is *State v. Tourtillott*, 618 P.2d 423 (Or. 1980), *cert. denied*, 451 U.S. 972 (1981), which approved a police roadblock set up on the opening day of deer season to check for unlicensed hunters. In reaching that decision, the Oregon Supreme Court relied primarily on this Court's opinion in *Delaware v. Prouse*, 440 U.S. 648 (1979). Accordingly, the court of appeals turned to *Prouse* for guidance in construing Article I, section 9. From *Prouse*, the court "distilled" four factors to consider in evaluating a suspicionless search: "(1) the importance of the governmental interests [served by the search]; (2) the degree of physical and psychological intrusion on the citizen's rights; (3) the amount of discretion the procedure vests in individual officials; and (4) the efficiency of the procedure -- that is[,] how well it contributes to the

reaching of its purported goals and how necessary it is." 23 F.3d at 1521 (Pet. App. 31a).

Taking these factors in reverse order, the court concluded, first, that the "efficiency" factor weighed in favor of the drug-testing program, but only "slightly." *Id.* at 1522 (Pet. App. 34a). It next concluded that the "discretion" factor also favored the District's position, because the drug test is "completely random." *Id.* (Pet. App. 36a). That left two factors -- "intrusiveness" and "importance" -- and those factors, the court said, "are dispositive." *Id.* (Pet. App. 37a).

Compelled urinalysis is a substantial intrusion on privacy, the court explained, for schoolchildren as well as adults. It noted that "[c]hildren *are* compelled to attend school, but nothing suggests that they lose their right to privacy in their excretory functions when they do so." *Id.* at 1525 (Pet. App. 52a)(emphasis in original). "Nor can we say," the court continued, "that the privacy interests of athletes are substantially lower than those of students in general." *Id.* at 1525 (Pet. App. 53a).

Turning, then, to the District's interest in drug testing, the court observed that those interests -- preventing unnecessary athletic injuries, reducing the attraction of drugs among other students, and improving discipline -- "are not minimal." *Id.* at 1526 (Pet. App. 56a). But, the court said, those interests

suffer by comparison to the kinds of dangers that have existed when random drug testing has been approved. The extreme dangers in hazards involved in the prior cases are simply not present here. The prospect that an athlete might hurt himself or a competitor is real enough, but it is not a risk of the same magnitude as an airplane or train wreck, or a gas pipeline or nuclear power plant disaster

Id. at 1526 (Pet. App. 56a-57a).

Balancing all of the factors, the court concluded:

[W]hen we mix all of the elements together -- the slight weight in favor of efficiency, the privacy interests, the governmental interest, and the discretionary factor -- and step back to look at the compound they yield, it becomes apparent that the policy violates the Fourth Amendment. It follows that it also violates Article I, Section 9[,] of the Oregon Constitution.

Id. at 1526 (Pet. App. 59a-60a).

The District petitioned this Court to consider whether its drug-testing program offends the Fourth Amendment, not whether it offends Article I, section 9, and, indeed, the District has not briefed the latter issue. For reasons set forth below, the Court should hold that the policy *does* violate the Fourth Amendment. If, however, the Court holds otherwise, that should not end the case. Instead, it should be remanded to the court of appeals to determine, once again, whether the program nevertheless violates the more-shielding state constitution. As the court of appeals put it, the Fourth Amendment merely establishes "the floor," not "the ceiling," for a lawful search in Oregon. 23 F.3d at 1521 (Pet. App. 33a).¹¹

¹¹ In their brief opposing the petition for a writ of *certiorari*, the Actons argued that the Court should deny the writ because the decision below rests on state law. The Actons will not repeat that argument here, but do not thereby concede that it is proper or advisable for the Court to hear this case. They urge the Court to dismiss the writ as improvidently granted.

SUMMARY OF ARGUMENT

The Fourth Amendment applies to searches conducted by school officials, *New Jersey v. T.L.O.*, 469 U.S. 325 (1969), and drug testing by urinalysis is a search. *Skinner v. Railway Labor Executives' Ass'n*, 489 U.S. 602 (1989).

As a general rule, the government cannot search a person without reason to suspect that he or she is guilty of wrongdoing. There is an exception, however, in limited circumstances, where: (1) the search serves some "special need" beyond the normal need for law enforcement; (2) the government's interest in searching is compelling; and (3) the privacy interests affected by the test are minimal. *Skinner*, 489 U.S. at 624. Applying this balance-of-interests test, the Court upheld drug-testing programs for railroad employees who are involved in major train wrecks, *Skinner*, and customs agents who carry lethal weapons, engage in the direct interdiction of narcotics, or have access to sensitive government information, *National Treasury Employees Union v. Von Raab*, 489 U.S. 656 (1989). The Court concluded in *Skinner* and *Von Raab* that the employees covered by the tests are engaged in safety- or security-sensitive activities, and often "discharge duties fraught with such risks of injury to others that even a momentary lapse of attention can have disastrous consequences." *Skinner*, 489 U.S. at 628. The government's "compelling" interest in preventing these "disastrous consequences" justified the substantial invasion of privacy that drug testing causes.

The District's drug-testing program fails the *Skinner* and *Von Raab* balancing test. First, drug testing by urinalysis is no less invasive and degrading for minors than it is for adults. Students do not surrender their expectations of privacy in their excretory functions when they attend school or go out for sports, and nothing in their experience in the classroom or on the playing field prepares them for the school's present demand to produce urine for inspection.

Second, the District's test procedures are much more intrusive than the procedures upheld in *Skinner* and *Von Raab*. The District requires students to produce the urine sample on demand, in school, and under observation by school officials. In *Skinner* and *Von Raab*, by comparison, the urine sample was collected by an independent monitor at an independent site and, at least in *Von Raab*, with five-days advance notice. Furthermore, the District requires students to disclose to school officials all of their prescription medications, thus enabling the officials to learn, even without testing, intimate details of the students' private lives.

Third, the goal of the District's drug-testing program -- preventing drug-related athletic injuries -- is much less compelling than the goals of the programs upheld in *Skinner* and *Von Raab*: preventing train wrecks, misuse of deadly weapons, compromise of the nation's borders, and disclosure of state secrets. Junior high school athletics is not "safety-" or "security-sensitive," as those terms are used in *Skinner* and *Von Raab*. The typical sports injury in Vernonia is a pulled muscle or torn ligament, and the District has never even had an injury that it can relate to drugs.

ARGUMENT

THE DISTRICT'S DRUG-TESTING PROGRAM VIOLATES THE FOURTH AMENDMENT

A. The Fourth Amendment Applies To School Searches

Public school students do not "shed their constitutional rights . . . at the schoolhouse gate." *Tinker v. Des Moines Indep. Community School Dist.*, 393 U.S. 503, 506 (1969); see also *New Jersey v. T.L.O.*, 469 U.S. at 334; *West Virginia State Bd. of Educ. v. Barnette*, 319 U.S. 624, 637 (1943). The Fourth Amendment, in particular, protects stu-

dents while in school. In *New Jersey v. T.L.O.*, the Court squarely held that school officials must comply with Fourth Amendment strictures when they search students on school grounds. 469 U.S. at 333-37.

Indeed, it is important for them to comply *scrupulously*. "Schools," it has been noted, "are places where we inculcate the values essential to the meaningful exercise of rights and responsibilities by a self-governing citizenry." *Id.* at 373 (Stevens, J., concurring in part and dissenting in part). "The values [students] learn there, they take with them in life." *Id.* at 386. One of our most cherished values, of course, is the right to privacy, which Justice Brandeis memorably described as "the right to be let alone -- the most comprehensive of rights and the right most valued by civilized men." *Olmstead v. United States*, 277 U.S. 438, 478 (1928) (Brandeis, J., dissenting). If a school is not careful to protect that right on behalf of its students, they will naturally come to view the Fourth Amendment and other constitutional prerogatives as mere platitudes, not to be taken seriously.

The District's observation that "public schools are entrusted with the difficult task of preparing students for citizenship," Pet. Br. at 18, is true, of course, but it hardly supports the District's assertion that school officials are somehow excused from the restraints the Constitution places on all other governmental agents. To the contrary, the Court has repeatedly emphasized that "[t]he authority possessed by the State to prescribe and enforce standards of conduct in its schools, although concededly very broad, must be exercised consistently with constitutional safeguards." *Goss v. Lopez*, 419 U.S. 565, 574 (1975). See also *West Virginia State Bd. of Educ. v. Barnette*, 319 U.S. at 637. As Justice Brennan once observed: "Schools cannot expect their students to learn the lessons of good citizenship when the school authorities themselves disregard the fundamental principles underpinning our constitutional freedoms." *Doe v. Renfrow*,

451 U.S. 1022, 1027-28 (1981) (dissenting from denial of *certiorari*).¹²

B. Drug Testing Is A "Search"

In *Skinner v. Railway Labor Executives' Ass'n*, 489 U.S. at 617, the Court held that a drug test for adults was a "search" under the Fourth Amendment, "[b]ecause it is clear that the collection and testing of urine intrudes upon expectations of privacy that society has long recognized as reasonable." The same can be said of drug tests for minors. Thus, the District's drug-testing program is a search and must comply with the Fourth Amendment. The District agrees. Pet. Br. at 17, n.13.

C. Standards For Drug Tests

The first clause of the Fourth Amendment prohibits "unreasonable" searches. In deciding what is reasonable, the Court has turned first to the Amendment's second clause, which states that "no Warrants shall issue but upon probable cause." Accordingly, the Court has repeatedly held that, as a general rule, the government cannot search a person without probable cause to suspect the person has done something wrong. *E.g.*, *Dunaway v. New York*, 442 U.S. 200, 214 (1979); *Chambers v. Maroney*, 399 U.S. 42, 51 (1970). Even in cases involving brief, minimally intrusive searches, the Court has almost always insisted upon some individualized suspicion of wrongdoing. *E.g.*, *Terry v. Ohio*, 392 U.S. 1, 30 (1968).

The history of the Fourth Amendment illustrates the importance of the individualized suspicion requirement. The

¹² It should be noted that the oldest of the District's students are 18 years old, old enough to vote in elections, Or. Const. art. II, §2(1)(a), and to serve on juries, Or. Rev. Stat. §10.030(2)(c), two of the most important responsibilities of citizenship.

Amendment was drafted in reaction to the "general warrants" that allowed British officers to search at large through colonial homes and businesses for evidence of crime, anti-Crown literature, and illegally imported goods. *See generally Marshall v. Barlow's, Inc.*, 436 U.S. 307, 311 (1978); *United States v. Chadwick*, 433 U.S. 1, 7-8 (1977); *Stanford v. Texas*, 379 U.S. 476, 481-85 (1965); *Frank v. Maryland*, 359 U.S. 360, 363-65 (1959). "The vivid memory by the newly independent Americans of these abuses produced the Fourth Amendment as a safeguard against such arbitrary action by officers of the new union" *Frank*, 359 U.S. at 363. Consistent with its historic origins, this Court has held that "some quantum of individualized suspicion is usually a prerequisite to a constitutional search and seizure." *United States v. Martinez-Fuerte*, 428 U.S. 543, 560 (1975).

Because individualized suspicion lies at the very core of the Fourth Amendment, the Court has strictly limited the circumstances in which the government may search without it. For example, suspicionless searches are almost never allowed in criminal cases. *See Skinner*, 489 U.S. at 619 ("Except in certain well-defined circumstances, a search or seizure in [a criminal case] is not reasonable unless accomplished pursuant to a judicial warrant issued upon probable cause"). And, even where a search serves "special governmental needs, beyond the normal need for law enforcement," it is still necessary to "balance the individual's privacy expectations against the government's interests to determine whether it is impractical to require a warrant or some level of individualized suspicion in the particular context." *National Treasury Employees Union v. Von Raab*, 489 U.S. at 665-66, citing *Skinner*, 489 U.S. at 619-20.

This is not a toothless test, and the mere invocation of "special needs" does not justify a suspicionless search. To the contrary, in *Skinner* and *Von Raab*, both of which involved random drug tests for government employees, the

Court carefully reviewed the government's interest in testing and the employees' interest in privacy before concluding that the challenged drug tests were constitutional as applied to some, but not all, of the targeted employees. Therefore, to resolve the Fourth Amendment issue presented in this case, it is useful to examine in detail the *Skinner* and *Von Raab* programs and the governmental interests they were designed to serve.

Skinner concerned Federal Railroad Administration regulations that authorized blood, breath, and urine tests of railroad employees who are involved in major train wrecks or who violate specified safety rules. The FRA acted in response to studies that showed a high incidence of drug and alcohol abuse within the railroad industry, creating a serious safety hazard. According to one study, apparently unchallenged, 23 percent of operating personnel were "problem drinkers"; thirteen percent reported to work at least "a little drunk" and five percent "very drunk" during the study year; and one in eight drank at least once while on duty. 489 U.S. at 607, n.1. Another unchallenged study, conducted without the benefit of regular, post-accident testing, "identified 34 fatalities, 66 injuries and over \$28 million in property damage (in 1983 dollars) that resulted from the errors of alcohol[-] and drug-impaired employees in 45 train accidents and train incidents during the period 1975 through 1983." *Id.* at 608.

Various labor groups sued to enjoin the regulations, arguing that the Fourth Amendment prevented the government from testing employees without individualized suspicion of drug use. The Court concluded, however, that the government's interest in random testing sufficiently outweighed the employee's privacy expectations to justify relaxing the traditional suspicion requirement. The Court described the government's interest in testing -- preventing train wrecks -- as, variously, "compelling," *id.* at 628 and 633, and "surpass-

ing," *id.* at 634. It also noted that the targeted employees are engaged in "safety-sensitive tasks," *id.* at 620, 629, and 633, and "discharge duties fraught with such risks of injury to others that even a momentary lapse of attention can have disastrous consequences." *Id.* at 628. These employees, like those "who have routine access to dangerous nuclear power facilities," are capable of causing "great human loss before any signs of impairment become noticeable to supervisors or others." *Id.*

The Court went on to say that these proven and persuasive safety concerns outweighed the privacy intrusions from the proposed blood and breath tests which, the Court noted, reveal no facts in which the employee has a substantial privacy interest, except the presence of alcohol or controlled substances. *Id.* at 626. The urine tests, however, presented a "more difficult question," and "raise[d] concerns not implicated by blood or breath tests." *Id.* The Court allowed that it "would not characterize these additional privacy concerns as minimal in most contexts." *Id.* It noted, however, that the FRA regulations endeavor to reduce the intrusiveness of the collection process. For one thing, the regulations do not require a monitor to observe the employee while the urine sample is produced. For another, they allow the sample to be collected in a "medical environment, by personnel unrelated to the railroad employer." *Id.* at 627-28. The collection procedures were, therefore, "not unlike similar procedures encountered often in the context of a regular physical examination." *Id.* at 627. The Court also noted that railroad employees have a diminished expectation of privacy "by reason of their participation in an industry that is regulated pervasively to ensure safety, a goal dependent, in substantial part, on the health and fitness of covered employees." *Id.* at 627. These employees, the Court noted, "have long been a principal focus of regulatory concern." *Id.* at 628.

Von Raab involved a drug-testing program for customs agents who: (1) are directly involved in drug interdiction, (2) carry firearms, or (3) handle classified material. 489 U.S. at 660-61. Citing *Skinner*, the Court reiterated that drug-testing is a search and that "a search must be supported, as a general matter, by a warrant issued upon probable cause." *Von Raab*, 489 U.S. at 664. It also reiterated that, in exceptional cases, where the government's interest in testing outweighs the individual's privacy expectations, the government may proceed without the presumptively necessary warrant and suspicion. *Id.* at 665-66.

Applying this balancing test, the Court first concluded that the government has a "compelling" interest in preventing drug use by customs agents involved in drug interdiction. The Court noted that "[t]he Customs Service is our Nation's first line of defense against one of the greatest problems affecting the health and welfare of our population," *id.* at 668, and that "[t]he physical safety of [Customs] employees may be threatened, and many may be tempted not only by bribes from traffickers with whom they deal, but also by their own access to vast sources of valuable contraband seized and controlled by the Service," *id.* at 669. Therefore, "the Government has a compelling interest in ensuring that front-line interdiction personnel are physically fit, and have unimpeachable integrity and judgment." *Id.*

The Court also found that the government has a compelling interest in preventing drug users from promotion to positions that require the employee to carry firearms. "Customs employees who may use deadly force plainly 'discharge duties fraught with such risks of injury to others that even a momentary lapse of attention can have disastrous consequences.'" *Id.* at 670, quoting *Skinner*, 489 U.S. at 628.

Against these "compelling interests in safety and the integrity of our borders," 489 U.S. at 672, the *Von Raab*

Court balanced the employees' expectations of privacy. Those expectations were "diminished," the Court said, because "[u]nlike most private citizens or government employees in general, employees involved in drug interdiction reasonably should expect effective inquiry into their fitness and probity[,] and [m]uch the same is true of employees who are required to carry firearms." *Id.* at 672. Moreover, the Court said, the agency's drug-testing procedures were carefully designed to minimize the program's intrusiveness. First, the employee is given five-days advance notice of the time and place for collecting the urine sample, *id.* at 664, thus reducing to a minimum any 'unsettling show of authority' . . . that may be associated with unexpected intrusions on privacy." *Id.* at 672, n.2. Second, the employee is not directly observed while urinating and, indeed, is allowed to produce the urine sample in the privacy of a bathroom stall. *Id.* at 661, 672, n.2. Third, the employee is not required to disclose the use of licit drugs, which may affect the test results, unless and until the specimen tests positive for illicit drugs and, even then, the licit drug information is given to a licensed physician, not to the Customs Service. *Id.* at 672, n.2. Finally, the sample is collected by an "independent contractor," *id.* at 661, not someone in the Service. "Taken together," the Court said, "these procedures significantly minimize the intrusiveness of the Service's drug-screening program." *Id.* at 672, n.2.

In light of these procedural safeguards and the "extraordinary safety and national security hazards that would attend the promotion of drug users to positions that require carrying firearms or the interdiction of controlled substances," *id.* at 674, the Customs Service was justified in testing applicants for such positions without the usual requirement of individualized suspicion of wrongdoing.

The Court was unable to determine whether the Service was also justified in testing applicants for positions that han-

dle "classified material" which, under the agency's scheme include, among others, accountants, animal caretakers, attorneys, baggage clerks, co-op students, mail clerks, and messengers. *Id.* at 678. The Court said these employees are subject to urine testing if they have access to "truly sensitive information." *Id.* at 677. It remanded the case to the lower courts to determine whether the designated positions do in fact allow access to such information.

D. The District's Drug-Testing Program Is Unreasonable

The District contends that its drug-testing program serves a "special need" beyond the normal need for law enforcement: namely, to reduce the risk of drug-related athletic injuries. Assuming that is true,¹³ the District's special need does not necessarily mean that the program is constitutional. Whether it is constitutional depends on whether the District's interest in testing without suspicion outweighs the students' privacy expectations. *Skinner; Von Raab*. The District agrees that this is the proper test. Pet. Br. at 32. So does the Solicitor General. Br. for the United States at 12-16 and n.2. For reasons that follow, the Court should conclude that, in this case, the students' privacy interests outweigh the District's interest in suspicionless drug testing and, therefore, that the testing program is unconstitutional.¹⁴

¹³ Although the District asserts in its brief that test results will not be disclosed to law enforcement authorities, the written description of the policy does not contain the same assurance. (J.A. 7-9).

¹⁴ The various *amici* supporting the District have offered several off-record reports of drug problems nationally and in other school districts. Even if this evidence is properly subject to judicial notice, it is not relevant to the question at hand: whether Vernonia's drug-testing program which, as explained *infra*, is much more intrusive than other programs, is a reasonable and hence constitutional response to its drug "problem."

(continued...)

1. The District's Program Is A Substantial Invasion Of Privacy

The compelled production and testing of urine is an extreme invasion of privacy, no less so for minors than adults, and no less so for athletes than nonathletes. The District's drug-testing program heightens the intrusion by requiring students to excrete on demand and under observation by school officials, not independent monitors, and by requiring the students to disclose to the officials their prescription medications.

(a)

Drug-testing by urinalysis intrudes deeply on settled expectations of privacy. The Court made that clear in *Skinner*:

There are few activities in our society more personal or private than the passing of urine. Most people describe it in euphemisms if they talk about it at all. It is a function traditionally performed without public observation; indeed, its performance in public is generally prohibited by law as well as social custom.

489 U.S. at 617, quoting *National Treasury Employees Union v. Von Raab*, 816 F.2d 170, 175 (5th Cir. 1987). See also *Von Raab*, 489 U.S. at 680 (Scalia, J., dissenting) ("I think it obvious that [urine testing] is a type of search par-

¹⁴ (...continued)

Although drugs are a national concern, the scope of the problem varies substantially from school district to school district, as the *amici*'s own evidence proves. Accordingly, this Court need not decide whether a drug-testing program of the type at issue here would be constitutional in a different school district with a different drug record. The Court should thus decline the *amici*'s invitation to make a one-size-fits-all rule that does not account for differences in drug programs and drug problems.

ticularly destructive of privacy and offensive to personal dignity").

Oregon takes the same view. In *Sterling v. Cupp*, 44 607 P.2d 206, 208 (Or.App. 1980), *aff'd as modified*, 625 P.2d 123 (Or. 1981), Judge Gillette, now a Justice on the Oregon Supreme Court, wrote: "[t]he final bastion of privacy is to be found in the area of human procreation and excretion, and the nudity which may accompany them. If a person is entitled to any shred of privacy, then it is to privacy as to these matters."¹⁵

As intrusive as drug-testing is for adults, it is just as intrusive, if not more so, for middle school students. Our culture instills early in children a keen sense of privacy in excretory functions. By first grade, they expect, and are expected, to urinate in seclusion, using segregated bathrooms, the same as adults. Adolescents are often extremely self-conscious about their developing bodies and its functions, especially when they reach puberty.

The Court has said that "[e]ven a limited search of the outer clothing . . . constitutes a severe, though brief intrusion upon cherished personal security, and it surely must be an annoying, frightening, and perhaps humiliating experience." *Terry v. Ohio*, 392 U.S. at 24-25. Drug testing by urinalysis must be all that and more, for both adults and minors.

¹⁵ Drug testing by urinalysis is so intrusive that at least sixteen states and five cities have enacted laws to regulate it. See K. Zeese, DRUG TESTING LEGAL MANUAL §1.05[3] (rel. #2, Nov. 1994). Three states require probable cause before an employer can compel an employee to take the test. *Id.* at 1-42. Four states and two cities require, among other things, that the employer have some reason to suspect the employee is using drugs or is drug-impaired. *Id.* at 1-43 to -44.

(b)

The privacy intrusion does not end when the urine sample is collected. Indeed, the most significant privacy interest affected by urinalysis may be the information contained in the urine. As noted in *Skinner*, "chemical analysis of urine, like that of blood, can reveal a host of private medical facts about [a person], including whether she is an epileptic, pregnant, or diabetic." 489 U.S. at 617. Over time, technological advances in urinalysis are sure to make the test even more revealing and, hence, even more intrusive.

The District, however, does not limit itself to the information to be gleaned from the urine sample. It also requires students to disclose any prescription medications they may be taking. (J.A. 8). By this simple expedient, the District learns, even without urinalysis, information that is generally held in strict confidence and that is completely unrelated to the one secret the District says it is trying to discover: whether the student is taking illicit drugs. For example, if a student reports that he is taking AZT, the school thus will have learned that he is infected with the AIDS virus. Similarly, if the student discloses that she is taking birth control pills, school officials will then know that she is sexually active and probably heterosexual. This is information which the school has no right to know¹⁶ and, moreover, is information that serves no purpose in preventing drug-related athletic injuries. The drug-screening program for Customs agents, upheld in *Von Raab*, likewise requires the disclosure of licit drug use, but only after the urine sample tests positive for illicit drugs and, even then, the information

¹⁶ It is unlawful to require a student to submit to a psychiatric or physiological examination for the purpose of determining, among other things, the student's "sex behavior and attitudes." 20 U.S.C. §123h(b)(3).

is disclosed only to a licensed physician, not to the Customs Service. *Von Raab*, 489 U.S. at 672, n.2.¹⁷

(c)

The District's test procedures are much more intrusive than the procedures upheld in *Skinner* and *Von Raab*. In the first place, the District's program requires students to produce urine on demand and under observation. Each week the school draws the names of the students to be tested. Those students are taken from class that same day, escorted to the locker room, handed a specimen bottle, and instructed to fill it while the monitor waits. A student who cannot urinate immediately is allowed to return to class, but must come back later in the day to try again under the same stressful conditions as before. (J.A. 32).¹⁸ By comparison, the Customs Service's drug test, at issue in *Von Raab*, provide for five days advance notice of the time and place for collecting the urine sample. This provision was important, the Court said, in reducing the intrusiveness of the Service's program. 489 U.S. at 672, n.2.

Male students in Vernonia suffer the added indignity of

¹⁷ The drug-testing program for railroad workers, upheld in *Skinner*, requires employees to disclose, at the time they produce blood and urine samples, "whether they have taken any medications during the preceding 30 days." 489 U.S. at 626, n.7. It is not clear from the opinion whether they are required to disclose *which* medications they have taken. In any event, this information is disclosed to the medical personnel retained to conduct the test, who then forward it to the FRA's laboratories. The information is apparently not shared with the worker's employer.

¹⁸ In *Schaill v. Tippecanoe County School Corp.*, 679 F.Supp. 833 (N.D. Ind. 1988), *aff'd*, 864 F.2d 1309 (7th Cir. 1988), which involved a drug-testing program for high school athletes and cheerleaders, there was evidence that some students suffer such stress while standing at the urinal that they are unable to void their bladder for up to two or three hours. 679 F.Supp. at 843.

being observed while they urinate. The test monitor accompanies the student to the urinal and stands a short distance behind, watching and listening at least some of the time. To be observed while urinating is, of course, an extreme invasion of privacy, which is why the Court found it significant, in both *Skinner* and *Von Raab*, that the drug-testing protocol did not require the employee to be observed while producing the urine sample. *Skinner*, 489 U.S. at 626; *Von Raab*, 489 U.S. at 672 n.2. Indeed, the *Von Raab* test allowed the employee to produce the sample in the privacy of a bathroom stall.¹⁹ In our society, it is degrading to be observed while urinating, even from behind.²⁰

It is even more degrading when the observer is someone in a position of authority to the person forced to urinate, which is the case in *Vernonia*. The monitors there are teachers, administrators, and coaches. By comparison, the Customs Service authorizes an "independent contractor" to collect the urine sample. *Von Raab*, 489 U.S. at 661. The FRA requires the sample to be collected in an "independent medical facility," *Skinner*, 489 U.S. at 609, by personnel "unrelated to the railroad employer." *Id.* at 626-27. Even the Institute for a Drug-Free Workplace, one of the Nation's foremost proponents of drug testing and an *amicus curiae* in support of the District, agrees that the collection of urine

¹⁹ In *Schall v. Tippecanoe County School Corp.*, which upheld a drug-testing program for high school athletes, the court placed great importance on the fact that the program allowed only aural, not visual, monitoring of the urine sample being produced. 864 F.2d at 1318.

²⁰ In George Orwell's famous novel, *1984*, he describes a "negative utopia" in which the citizenry have lost all privacy. The government -- "Big Brother" -- watches everyone through "telescreens" mounted on the walls. The screens are everywhere, including the water closet: "There was no place where you could be more certain that the telescreens were watched continuously." Eric Blair a.k.a. George Orwell, *1984* 89 (New American Library 1981).

samples should be "conducted by independent trained professionals at an independent site" in order to limit the intrusion on privacy. Br. of Inst. for a Drug-Free Workplace at 12.

(d)

The District's drug-testing program is all the more intrusive because it regulates conduct that the District has no right to regulate and, moreover, has expressed no interest in regulating -- namely, off-campus, after-hours drug use that does not result in drug-impairment during class or a District-sponsored athletic event. Drug use is regrettable, of course, no matter where or when it occurs, but this conduct does not threaten school discipline or athletic safety, the District's stated concerns, and thus does not justify its program of round-the-clock surveillance. The District has little or no interest in student conduct *outside* of school, where parents and other authorities are in charge, if it does not affect student conduct *inside*. Compare *Von Raab*, 489 U.S. at 674 (because of its "almost unique mission," the Customs Service has a "compelling interest in ensuring that [agents covered by its drug test] do not use drugs even off duty").

(e)

The District argues that its drug-testing program is not a substantial invasion of privacy because: (1) students have a substantially diminished expectation of privacy in their urine; (2) athletes in particular have far fewer privacy interests; (3) the program is nonpunitive and confidential; (4) the collection procedures are minimally intrusive; and (5) participation in school sports is voluntary. None of these arguments, addressed in turn below, withstands scrutiny.

(1) The District argues that minors surrender their privacy expectations when they pass through the schoolhouse gate, because the "process of educating young people is inherently invasive." Pet. Br. at 39. "A teacher," the District

says, "simply cannot do his or her job without constantly and pervasively intruding into privacy interests [of students]." *Id.* at 40. Therefore, the District argues, students must have a substantially diminished expectation of privacy. This Court rejected a similar contention in *T.L.O.* In that case, the State of New Jersey argued that, "because of the pervasive supervision to which children in the schools are necessarily subject, a child has virtually no legitimate expectation of privacy in articles of personal property 'unnecessarily' carried into school." 469 U.S. at 338. This argument, the Court said, was based in part on the "seriously flawed" premise that student privacy is fundamentally incompatible with maintaining a sound educational environment. *Id.* The Court also said: "Although we may take notice of the difficulty of maintaining discipline in the public schools today, the situation is not so dire that students in the schools may claim no legitimate expectations of privacy." *Id.* The Court went on to hold that, because students have legitimate expectations of privacy, school officials cannot search students without some suspicion of wrongdoing. *Id.* at 341-42.

To be sure, students in school have less expectation of privacy than adults in other settings. That, of course, was part of the reason that *T.L.O.* authorized school officials to search students with less suspicion than probable cause.²¹ But even if a student's privacy expectations are not on par with an adult's, they are still substantial. "A search of a child's person . . . *no less than a similar search carried out on an adult*, is undoubtedly a severe violation of subjective

²¹ Oregon has not followed *T.L.O.* in construing the state constitution. In *State ex rel. Juvenile Dep 't v. DuBois*, 821 P.2d 1124, 1126-27 (Or. App. 1991), the court held that Article I, section 9, unlike the Fourth Amendment, does not permit school officials to search an individual student without a warrant or probable cause, unless "exigent circumstances" or some other historical exception applies.

expectations of privacy." *Id.* at 338 (emphasis added). Thus, the District greatly overstates its case when it suggests that school-age minors have substantially diminished expectations of privacy.

It also overgeneralizes. Students may have a diminished expectation of privacy in some things, but not others. For example, the District has put its students on notice that their lockers belong to the school and thus are subject to routine inspections. (Pl. Ex. 2 at 21).²² But nothing in the students' school experience gives them reason to expect that their urine is open to inspection as well. To the contrary, they have a real and legitimate expectation that this most private of human activities is off limits to others even while they are in school. They are not routinely observed while urinating there, and school officials do not ordinarily have access to their urine for analysis.

Even if students' privacy expectations are diminished inside the schoolhouse, they remain intact outside. The District does not contend otherwise. Nevertheless, its drug-testing program intrudes on students' activities off-campus and after school hours. As noted above, the test does not discriminate between drug-impairment in class or during school sports and drug-impairment at other times or places, including the student's home. Drug use anytime anywhere will produce a positive test result and trigger the prescribed penalties. Thus, the drug test reaches beyond the time (the schoolday) and the place (the schoolhouse and yard) where

²² The handbook also provides that a "[s]earch of the student's person or possessions will be limited to the situation where there is reason to believe that a student is hiding evidence of an illegal act or a school violation." (Pl. Ex. 2 at 14). This provision, if nothing else, gives students an expectation of freedom from suspicionless searches while on school grounds.

the District now argues that students have a diminished expectation of privacy.²³

(2) The District argues that athletes in particular have a reduced expectation of privacy in either their urine or the act of urinating, because, the District says, school sports are so highly regulated. In fact, the District's athletic regulations are trifling. To play sports students must have a physical examination, keep up their grades, and obtain health insurance or sign an insurance waiver. (R. 61-62; Pl. Ex. 5 at 63).²⁴ That's it. These minimally intrusive rules do not compare to the pervasive federal and state regulations governing railroad employees, which led the *Skinner* Court to conclude that they lose some expectation of privacy in their urine when they report to work. 489 U.S. at 627-28. As the court of appeals correctly noted below, the District's rules "are not the sort of extensive government regulation that has been found to diminish the expectation of privacy of workers in high risk industries or high security areas of the government." 23 F.3d at 1525 (Pet. App. 53a-54a)(citations omitted). "High school athletes," the court continued, "do not go through extensive background checks in order to join their teams." *Id.* The District is unable to point to anything in its athletic rules that would prepare students for the District's demand to excrete under supervision so the

²³ The time it takes for drugs to become undetectable in urine varies with the individual, but can last as long as 22 days. *Von Raab*, 489 U.S. at 676. Since the District begins testing at the start of each school quarter, it is possible for a student to test positive based on drug use during vacation.

²⁴ Athletes are also required to observe training rules set by the coach, which the District suggests are rigorous and intrusive. But there is no evidence that the coaches have in fact set *any* training rules, let alone rigorous or intrusive ones. Even while alluding to these unspecified rules, the District does not suggest that any of them concern athletes' excretory functions.

fluid can be examined for the secrets within.

Continuing its athletes-have-fewer-rights argument, the District states that the mandatory, pre-season physical examination "includes urinalysis." Pet. Br. at 41. The word "includes" should not mislead the Court, as it did the Solicitor General, *see* Br. of United States at 24, to assume that urinalysis is a *required* part of the examination. It is not. James testified that he gave a urine sample during his exam (J.A. 17), but no one testified that he had to or that anyone else did. The district superintendent testified that athletes must have a physical exam, but he did not know what the exam entailed. (R. 62-63). In any event, James produced his urine sample unobserved in the privacy of a bathroom stall and gave it to his physician, with whom he has a confidential relationship. (J.A. 17-18). Whatever tests were conducted on the specimen -- and nothing in this record identifies them -- the results could not be disclosed, to school officials or anyone else, without the consent of James or his parents. Far from proving that James has no expectation of privacy in his urine, the circumstances of his pre-season examination prove that he does. The District notes that drug testing for steroids and other performance-enhancing drugs has become more common in collegiate, Olympic, and professional athletics, where the Fourth Amendment generally does not apply. *But cf. University of Colorado v. Derdyn*, 863 P.2d 929 (Colo. 1993), *cert. denied*, ___ U.S. ___ (1994) (upholding a Fourth Amendment challenge to a drug-testing program for university athletes). This proves nothing except that, if James ever succeeds to that high level of athletic competition, he may expect, *then*, to give up some privacy; it does not prove that he has given it up now.

(3) The District argues that its drug-testing program is "minimally intrusive" because it is "non-punitive" and "confidential." In fact it is neither. Students who flunk the test are forced to quit sports or to submit to drug counseling and

weekly urinalysis. Those who flunk a second or third time are not even given that Hobson's choice -- instead, they are automatically kicked out of the sports program for two or more seasons. Most students would consider that punishment. Indeed, suspension is the *prescribed* punishment for students who demonstrate poor sportsmanship, misuse the school's athletic equipment, or otherwise breach the its rules for athletes. (Pl. Ex. 5 at 63). What is punishment in the one context is also punishment in the other.²⁵

As the District itself concedes, "community life [in Vernonia] centers around the schools, with interscholastic athletics playing a dominant role." Pet. Br. at 3. Therefore, to be denied the right to participate in school sports is, in effect, to be excluded in part from the community. That cannot be viewed as anything *but* punishment. What is more, it is *public* punishment. It is true that the District does not publish the test results. But in a small town such as Vernonia, where community life revolves around the schools and school sports, everyone will know when a student tests positive, because it will be obvious that the student, once on the team, no longer is. The "secret" will inevitably get out, starting with the student's teammates and spreading from there.

The fact that the District does not report test results to the police for law enforcement purposes -- if it is a fact, *see* note 13, *supra* -- does not support its contention that the privacy expectations of athletes should be discounted in the weighing of individual and governmental interests. To do so would overinflate the government's side of the balance,

²⁵ The fact that the District calls each positive test an "offense" and that the length of the suspension increases with the number of offensives, (J.A. 9), further undermines the District's contention that the drug-testing program is nonpunitive.

as the Colorado Supreme Court explained while striking down a random drug-testing program for university athletes:

It is true that an intrusion by the government outside the context of criminal law enforcement is generally less of an intrusion than one for the purposes of law enforcement. However, as a matter of law, we already take this fact into account when we analyze this case according to the standards of *Skinner* and *Von Raab*, rather than according to the standards of the typical cases in the area of criminal procedure In other words, were we to attribute less weight to the students' privacy interests because this is not a criminal case, and also start with the premise that *Skinner* and *Von Raab* control, we would be, in effect, giving double weight in our analysis to the fact that we are not dealing with an issue in criminal procedure

University of Colorado v. Derdyn, 863 P.2d at 942.

(4) The District contends that its drug-testing program is minimally intrusive because the conditions under which athletes are tested are essentially the same as using a public restroom or locker room. Pet. Br. at 42. But, of course, there are substantial differences. A person urinating in a public restroom is not forced to do so, is not subject to visual and aural monitoring and, most importantly, does not surrender the urine for analysis by government officials. In public facilities, individuals blend into the crowd; they are not singled out for observation. Indeed, it is considered taboo even to appear to be observing others in a public restroom. People avert their eyes from one another; they attend to their own needs and then leave. For most schoolchildren, there is a world of difference between using a public facility

and being ordered to fill a specimen bottle while a teacher watches and listens.²⁶

(5) Finally, the District contends that its drug-testing program is minimally intrusive because it applies only to students who "voluntarily" engage in school sports and thus can be avoided by students who object to it. Pet. Br. at 42-43. To be sure, the program is less intrusive than it would be if it applied to all students and thus was unavoidable. But even as applied to athletes only, the intrusion is still extreme, considering what students must give up to escape testing: participation in school sports. That is a very high price to pay for asserting a constitutional right. As the District superintendent testified, playing school sports is an "important part of the school experience." (Pl. Ex. 5 at 7; see also J.A. 20). The court below made the same observation: "Participation in athletics is obviously highly desirable and encouraged, as this record shows. The fact is that parents wish to have their children obtain the physical and mental benefits of organized sports. That, too, is part of the educational process; part of what tax dollars pay for." 23 F.3d at 1525 (Pet. App. 55a).

The District cites *United States v. Martinez-Fuerte*, 428 U.S. 543, for the proposition that a search is unintrusive as a matter of law if it can be evaded, somehow, anyhow. But that is not, in fact, the holding of that case. *Martinez-Fuerte* allowed immigration officials to briefly detain motorists at fixed checkpoints near the border to inquire whether they were in this country legally. The Court described this as minimally intrusive compared to a full-scale search of the person. *Id.* at 558. It also noted that motorists who object to even that much intrusion can learn in advance where the

²⁶ Adults, too, use public restrooms, but the District does not contend that adults have thereby lost all expectation of privacy in their urine or the process of excreting it.

checkpoints are and take other roads to avoid them. *Id.* at 559. This was not, of course, the decisive factor in the Court's ruling. Nevertheless, the District makes much of the fact that its students, like the motorists in *Martinez-Fuerte*, can avoid the drug test by not going out for school sports. What the District overlooks, of course, is that students in Vernonia, unlike the motorists in *Martinez-Fuerte*, cannot avoid the test *and still get where they were going*. There are no "other roads" for students who want to participate in organized athletics. The District's sports program is, so to speak, the only game in town, a point the District concedes at page 3 of its brief: "Because of its size and location, the town has few recreational opportunities or organized entertainment programs for elementary and high school students."

In sum, the fact that the District's drug test can be avoided -- because it applies only to students who play sports and playing sports is "voluntary" -- does not significantly diminish the privacy intrusion.²⁷

2. The District's Interest In Drug Testing Is Not Compelling

The privacy interests affected by the District's drug-testing program are significant, as explained in the preceding section. By comparison, the District's interest in maintaining the program is slight.

²⁷ Just as students do not *have* to play school sports, people who work for the Customs Service do not *have* to work there; they can seek employment elsewhere and, therefore, their employment is "voluntary," too, under the District's analysis. Even so, Customs agents do not surrender their privacy interests when they hire on. If they did, *Von Raab* would have been a much easier case to decide.

(a)

The District says that its interest in drug testing, to be balanced against the students' interest in privacy, is preserving the safety of its athletes. But that, of course, is incorrect. It is not athletic safety that should be weighed in the balance, for the District is free to pursue that goal by traditional methods, including education and counseling, and perhaps even drug testing on suspicion of drug use. Rather, the interest to be entered on the District's side of the balance is the "cost" of pursuing that goal *without suspicionless* drug testing.

The surest way to measure this cost is to compare the number of drug-related athletic injuries before the drug-testing program and the number of such injuries after, since the test was in effect for several years before the trial of this case. A substantial drop-off after the test might indicate that it is an efficient means to its stated end and thus would be costly to discontinue. The record, however, does not indicate a drop-off. Although there is no evidence of a drug-related athletic injury *after* testing began, neither is there evidence of any such injuries *before* it began. The District suspects that one wrestler was injured while on drugs, but that suspicion was never confirmed, as noted earlier. Measured against its goal of reducing injuries from drugs, the District's drug-testing program has little apparent value, and so the District's interest in continuing the program is slight.

(b)

Even if the drug-testing program were an efficient means to its stated end -- safer sports -- the end itself "suffer[s] by comparison" to the ends of the drug-testing programs upheld in *Skinner* and *Von Raab*, as the court below correctly noted. 23 F.3d at 1526 (Pet. App. 56a). The goal of the *Skinner* program, which this Court found barely sufficient to justify urine testing, as opposed to less intrusive

blood and breath testing, 489 U.S. at 625-27, was to prevent train wrecks and their attendant loss of life and property damage. In *Von Raab*, the goals were preserving the integrity of the Nation's borders and preventing the misuse of deadly weapons. Accordingly, the Court could say in *Skinner* and *Von Raab* that the employees covered by the drug tests there hold "safety-" or "security-sensitive" positions and "discharge duties fraught with such risks of injuries to others that even a momentary lapse of attention can have disastrous consequences." *Skinner*, 489 U.S. at 628; quoted with approval in *Von Raab*, 489 U.S. at 670. These precedents make clear that our precious Fourth Amendment freedoms do not give way except to the most compelling safety and security concerns.

That point is bolstered by *Von Raab*'s conclusion that drug testing may be unconstitutional for Custom Service employees who are not engaged in front-line drug interdiction and do not carry firearms. No doubt some of the employees in this group -- which includes messengers -- operate motor vehicles, either on- or off-duty, which is unquestionably a more dangerous activity than middle- and high-school athletics. Even so, these employees could not be compelled to submit to a urine test under the Service's screening program without some proof that they were likely to gain access to "sensitive information" and thus pose a threat to national security. *Id.* at 677-78.

The District's concern for the safety of student athletes, albeit well-intentioned, simply does not rise to the level of the safety concerns that were found sufficiently compelling in *Skinner* and *Von Raab* to justify so serious an invasion of privacy as the compelled production and testing of urine. There certainly is no risk of harm on the order of a train wreck or gun battle if a student athlete competes while drug-impaired. Indeed, the District's experience shows that there is little risk of any injury, let alone a serious one; as

noted earlier, the District cannot prove a single drug-related athletic injury in the history of its sports program. Even if there were some drug-related injuries that escaped detection, they could not have been very serious. The District's athletic director testified that the typical injury in the girl's sports program (which includes volleyball, cross country, basketball, track, and golf) was a "muscle-type" injury, such as a "pulled muscle" from "improper warmup" or a "torn ligament or cartilage." (J.A. 43-44). The boy's sports program includes the same sports (excepting volleyball) plus football and wrestling. The District offered no evidence that the typical injury for boys is more serious than the typical injury for girls, so the Court should assume that it is not more serious. No injury should ever be taken lightly, of course, but the government's interest in preventing pulled muscles and torn ligaments is not equal to its interest in preventing loss of life or breaches of national security.

The District argues, correctly, that just because there have not been any serious, drug-related injuries does not mean that there could not be any. The issue, however, is not whether such an injury *could* happen, but the likelihood that it will without drug testing. Nearly everything is possible, but not everything is probable, and some things are very *improbable*, if experience is any guide. The District's sports program has no history of drug-related injuries, even before its drug test. On this record, therefore, the probability of future injuries if testing stops must be slight, if calculable at all. Fourth Amendment rights should not be lost to mere speculation about potential harm.²⁸

²⁸ The *Skinner* Court demanded more than speculation. As noted above, the drug-testing program at issue there was supported by unchallenged studies showing both a high incidence of drug use among railroad workers -- one of eight drank on the job and eighteen percent reported for work either "very drunk" or at least "a little drunk," 489 U.S. at 607 n.1 (continued...)

Recognizing the holes in the record, the District notes that illicit drugs can be harmful to minors aside from their potential for causing sports injuries. Drugs, the District says, can interfere with memory, sensation, and perception, and can "lead people to take risks, to be careless and impulsive and to disregard instructions," Pet. Br. at 30 and 31, n.2, depending, of course, on the type of drug and when and how it is used. But this, of course, is true for both young and old drug users and for both athletes and nonathletes. If that potential, generalized harm were sufficient to justify random drug testing, then *everyone* would be subject to urine testing regardless of age or occupation, and *Skinner* and *Von Raab* would just be so much spilt ink. *Von Raab* makes clear, however, that not everyone *is* subject to testing: customs agents, for example, are immune if they are not directly involved in drug interdiction, do not carry firearms, and do not have access to sensitive information. That holding cannot be reconciled with the District's argument that the physiological and psychological effects of illicit drugs are sufficient alone to permit drug testing for any potential user.

(c)

The District's interest in its drug testing program is diminished substantially by its failure to prove a high incidence of drug use within its sports program. Some groups targeted for drug testing are engaged in such ultra-hazardous activities that even a single, drug-impaired individual can cause catastrophe -- airline pilots, railroad engineers, and nuclear reactor operators come quickly to mind. Accordingly, the government may be justified in testing these groups

²⁸ (...continued)

-- as well as a clear connection to railroad safety -- drug-impaired workers caused *at least* 34 fatalities and \$28 million in property damage in just eight years. *Id.* at 608.

even without evidence that many, if any, group members actually use drugs. The Court made this precise point in *Von Raab* in response to the contention that the Custom Service drug test was unjustified without proof of frequent drug use by customs agents: "The mere circumstance that all but a few of the employees tested are entirely innocent of wrongdoing does not impugn the program's validity," given the "substantial" harm the program seeks to guard against. 489 U.S. at 674-75. But for groups engaged in less hazardous activities, where the potential harm from a drug-impaired individual is relatively minor -- pulled muscles and torn ligaments, not plane crashes, train wrecks, or reactor meltdowns -- the lack of evidence of frequent drug use within the group substantially reduces the government's interest in subjecting all group members to the indignity of drug testing.

(d)

The District's interest in dragnet drug testing, slight to begin with, is diminished further by the limited utility of its testing program. The test does not cure drug use, nor does it prevent athletes from competing while on drugs. The only way to prevent that is to test each student in advance of each athletic event, as the District's own expert agreed. (Def. Ex. 106 at 81). See also *Brooks v. East Chambers Consol. Indep. School Dist.*, 730 F.Supp. 759, 765 (S.D.Tex. 1989), *aff'd without published op.*, 930 F.2d 915 (5th Cir. 1991). Drug testing is simply a means of detecting those who use drugs. As such, it offers some deterrence to drug use, including use in athletic competition. But there are already several substantial deterrents. First and foremost is the usual fear of getting caught, which is possible, of course, without random drug testing. Another existing deterrent is that students who volunteer to play sports want to play well and thus will avoid using drugs in competition for fear of impairing their performance. They might take drugs outside of competition but, in that event, there is no risk of

a drug-related athletic injury which, again, is the District's announced concern. Finally, there is concern for personal safety. As the District itself observes, playing sports on drugs can increase the risk of injury. That fact is surely not lost on most athletes and, therefore, most will avoid drugs in competition for fear of getting hurt. "It is, of course, the fear of the accident, not the fear of a postaccident revelation, that deters." *Skinner*, 489 U.S. at 651 (Marshall, J., dissenting). All things considered, the District's drug-testing program provides little added deterrence to the use of illicit drugs in school sports.

What little deterrence it does add is compromised substantially by the limitations of the District's drug test. It covers only a few drugs -- marijuana, amphetamines, cocaine, and occasionally LSD -- conspicuously omitting alcohol, the one drug that everyone agrees is most readily available to and most often abused by both minors and adults, as well as steroids, the drug that is most commonly used by athletes seeking to enhance their performance. Thus, if there are athletes who want to compete under the influence of drugs -- and the District has not proved there are any -- the drug test will not deter them; they will simply switch to alcohol or drugs not covered by the test.²⁹

(e)

Even if the District's drug-testing program were an efficient means to a compelling end, the availability of a less

²⁹ Yet another limitation of the test is that it merely indicates whether a student has taken one of the targeted drugs at some time in the recent past. It does not indicate how much the student took or when, or whether it was enough to cause any impairment, let alone substantial impairment, at any given point in time. The test is not like a blood alcohol test, which determines not only whether a person has alcohol in his blood, but also how much alcohol is there -- whether, in particular, there is enough to put the person over the "legal limit," at which point substantial impairment can be presumed or proven.

intrusive means to the same end -- namely, drug testing on suspicion of drug use -- substantially diminishes the District's interest in the program. The District argues that suspicion-based testing, which it has not tried (J.A. 35), is unworkable because, it says, school officials cannot formulate, through observation alone, a reasonable suspicion that a student is drug-impaired. But the whole premise of its drug-testing program is that they *can* do that. As explained earlier, the District adopted the program after it concluded that it had a drug problem. The basis for that conclusion was an apparent rise in the number of unruly students. These students, or most of them, the District says, were unruly because of drugs. Obviously, then, the District *can* tell without testing who is on drugs, or at least it thinks it can: It is the unruly students. Either the District is wrong -- not all unruly students are on drugs -- in which case the foundation for its drug-testing program collapses: there is no drug problem. Or it's right -- all unruly students *are* on drugs -- in which case the foundation still collapses because, in that case, the District would not need to test anyone to determine who is on drugs, it would only need to observe who is misbehaving. At most, the District would have an interest in testing the students who misbehave and thus give reason to be suspected of using drugs. But it would have no rational interest in testing the students, like James, who are well-behaved.

The District can't have it both ways. It can't argue, on the one hand, that "[t]eachers and coaches cannot reliably detect drug intoxication by observation," Pet. Br. at 37, and then argue on the other hand that, based on observation alone, school officials know, or at least reasonably suspect, that a large part of the student body uses illicit drugs and, moreover, that *particular* students use them -- namely, the Big Elks, the Drug Cartellians, and "leading student athletes." Pet. Br. at 6. The court of appeals was unimpressed

with the District's we-can't-tell-without-testing argument, noting that "the testimony showed" that "teachers and administrators *could* detect behavior and physical problems that rather clearly appeared to be drug related." 23 F.3d at 1522 (Pet. App. 35a)(emphasis added).

In *Delaware v. Prouse*, 440 U.S. 625, the Court held that the police could not stop motorists without suspicion of wrongdoing to check for unlicensed drivers and unsafe vehicles. The Court noted that these "roving spot checks" serve an important end -- enforcing the motor vehicle code -- but concluded nevertheless that they are not "a sufficiently productive mechanism to justify the intrusion upon Fourth Amendment interests such stops entail," "[g]iven the alternative mechanisms available." *Id.* at 659. The "foremost" of the alternatives, the Court said, "is acting upon observed violations." *Id.* Likewise, the "foremost" method for enforcing student conduct codes is acting on observed violations. The availability of that alternative enforcement mechanism diminishes the District's interest in random, suspicionless drug testing.³⁰

³⁰ In *Michigan Dep't of State Police v. Sitz*, 496 U.S. 444 (1990), which upheld sobriety roadblocks, the Court explained that *Delaware v. Prouse* was not intended to approve "searching examination of the 'effectiveness'" of particular searches and seizures. *Sitz*, 496 U.S. at 454. Nevertheless, the Court went on to examine the results of the roadblock and concluded that it was at least as effective as the border checkpoint approved in *United States v. Martinez-Fuerte*, 428 U.S. 543. *Sitz*, 496 U.S. at 455. Furthermore, in its summation, the *Sitz* Court said that "the extent to which [sobriety roadblocks] can reasonably be said to advance [the State's interest in preventing drunk driving]" was part of the basis for its decision to approve such roadblocks. *Id.* Read together, *Prouse* and *Sitz* hold that the effectiveness of a search in achieving its stated goal is not dispositive, but is at least a factor to consider, in determining whether the search is reasonable under the Fourth Amendment. The District agrees. See Pet. Br. at 15-16 (citing "effectiveness" as one factor to balance in evaluating a search).

(f)

The District's brief refers occasionally to a second potential justification for its drug-testing program: maintaining order in the classroom. But that goal, on this record, is as defective constitutionally as the stated goal of athletic safety. The government has no less interest in maintaining order and productivity in its workplace than in its schools, especially for important agencies like the Customs Service. And yet that interest alone proved insufficient to subject all Customs employees to drug testing. *Von Raab*, 489 U.S. at 677-78.³¹

In any event, if the District's hidden agenda is to reduce disruptions in the classroom, it is difficult to see the logic of its drug-testing program. Teachers don't need drug tests to find out which students are being disruptive. If disruptive behavior is not obvious, then it's not disruptive behavior. Therefore, to deter disruptions, school officials can and should punish the perpetrators. It makes little sense, however, to respond to students who disrupt class with a drug test for only those students who go out for sports. Not all disruptive students play sports, so the test won't deter them from further misbehavior. And not all athletes who misbehave in class take drugs, so the test won't deter them either. Finally, not all athletes who take drugs misbehave in class, so subjecting them to the test won't reduce classroom disruptions. In short, the District's drug-testing program is not rationally related to its after-the-fact statement of purpose. As the court of appeals observed, "If the goal was to reduce drug use in the student body in general [as opposed

³¹ The District claims that athletes are "role models" and "leaders" for the rest of the student body. Pet. Br. at 30. But this is another overstatement. Two-thirds of its high school students and three-fourths of its junior high students are athletes. *Id.* at 3. Not everyone can be a role model. And there can't be more students leading than being led.

to avoiding athletic injuries], testing athletes seems to be a considerably more roundabout way of reaching that goal." 23 F.3d at 1522 (Pet. App. 35a).

3. The Students' Interest In Privacy Outweighs The District's Interest In Testing

The District's drug-testing program is a extreme invasion of privacy. It compels students to engage in one of the most private human activities -- the excretion of urine -- on demand and under the watchful eyes of an adult authority figure, and then to surrender the urine to the government for chemical analysis. It also forces students to disclose their prescription medications, thus enabling school officials to discover, even without testing, the students' most private health secrets.

Balanced against these substantial privacy intrusions is the District's interest in reducing the risk of drug-related athletic injuries. On this record, that risk is slight, given that the District experienced no drug-related injuries in its sports program before the drug test began. Furthermore, the typical athletic injury -- often a pulled muscle, sometimes a torn ligament -- is a relatively minor harm, compared to the "disastrous consequences" that the drug test in *Skinner* was designed to prevent, 489 U.S. at 1419, or the "extraordinary safety and national security hazards" that the *Von Raab* test was intended to avert. 489 U.S. at 674. This combination of slight risk and minor harm produces a less-than-compelling argument for the District's drug-testing program, which is weakened further by the limitations of the test and the availability of less intrusive alternatives to the same goal. Accordingly, the Court should hold that the District's program violates the Fourth Amendment. To hold otherwise would mean that the Amendment has become frail protection indeed against government invasions of privacy.

CONCLUSION

The judgment below should be affirmed.

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